

Inha University in Tashkent

Theme 4: The Role of the President of the Republic of Uzbekistan on State Governance

Tashkent – 2024

Outline:



Formation of the Institute of
Presidency in Uzbekistan



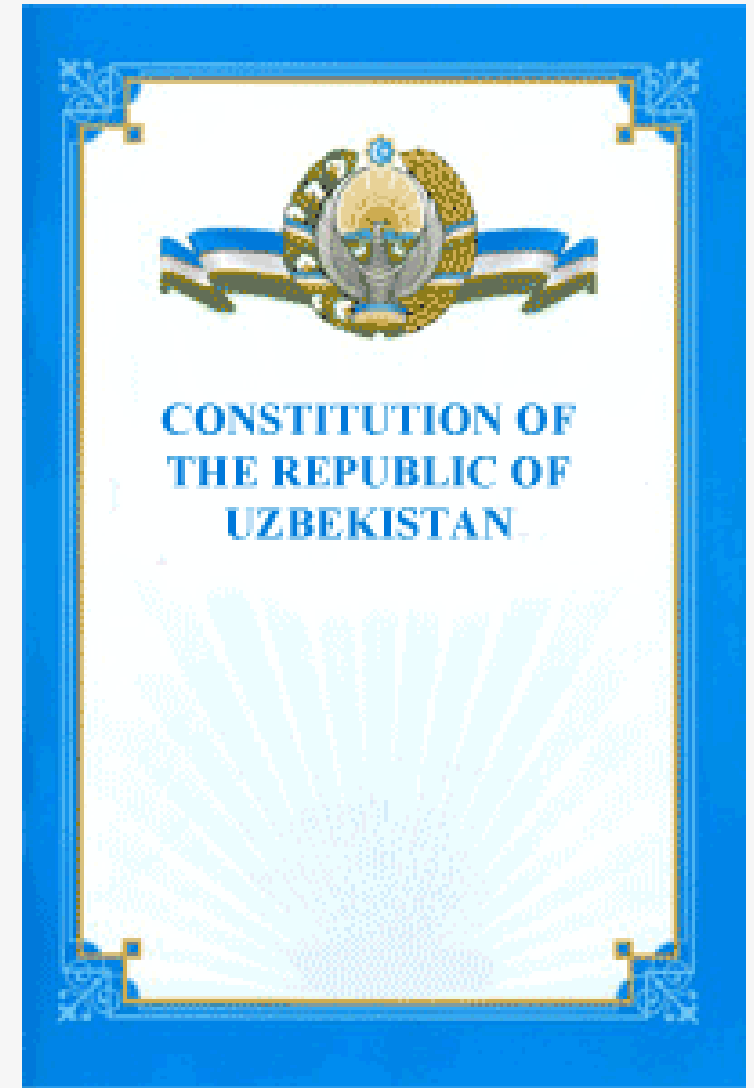
The Presidential Elections



The Powers and Duties of President
of the Republic of Uzbekistan

The Formation of Institute of Presidency

- After the independence of Uzbekistan, a new, modern and efficient system of state governance was formed.
- The form of Presidential republic was accepted as a part of this system.
- As a rule, the presidential republic presents the state with an elected head, where the head of state is also the head of the government.
- Uzbekistan followed the tendency of the presidential republic, and it was changed to mixed form of republic gradually.
- The President of the Republic of Uzbekistan is the Head of the State and ensures concerted functioning and interaction of bodies of state authority.



The first Presidential Election in 1991



- Islam Abduganievich Karimov from the People's Democratic Party of Uzbekistan and the Federation of Trade Unions of Uzbekistan
- 8 million 514 thousand 136 votes or 86% of them



- Muhammad Salih from the Erk Democratic Party of Uzbekistan
- 1 million 220 thousand 474 electors (12.3%)

The Biography of Islam Karimov

- Islam Karimov was born in Samarkand in 1938
- He graduated from the Central Asian Polytechnic Institute and the Tashkent Institute of National Economy.
- Since 1960, he worked as a master assistant, master, technologist at the Tashkent Aviation Production Association named after Chkalov.
- From 1966, he went on his career as the main specialist at the State Planning Committee of UzbekSSR and became the deputy of chairman of the Committee.
- From 1983 the Minister of Finance of Uzbekistan, from 1986 - Deputy Chairman of the Council of Ministers of Uzbekistan - Chairman of the State Planning Committee of the Republic.
- From 1986 he was the first secretary of Party Committee of Qashqadarya region of the Communist Party of Uzbekistan.
- From June 1989 - First Secretary of the Central Committee of the Communist Party of Uzbekistan.
- On March 24, 1990, he was elected the President of the Republic of Uzbekistan at the session of the Supreme Council of Uzbekistan.



Referendum in 1995

- In developed countries, Presidential elections and other political events do not lead to a sharp turn in ordinary citizens or society in general.
- In the time of the transition, the situation is quite complex. In any government policy, the consistency of the existing system of governance and the rule of law are assessed as a natural and effective phenomenon.
- In a short period, a great deal has been done to radically change in every sphere of life. In order to continue these large-scale reforms, the Oliy Majlis of the Republic of Uzbekistan decided to hold a nation-wide referendum on extending the powers of President Islam Karimov from 1997 to 2000 on March 26, 1995.
- The initiative, supported by 99.6 percent of those who participated in the referendum, extend the presidential mandate until 2000. Only 0.4 percent of voters in the referendum voted "no". Attendance was 99.3 percent.



The Second Presidential Election in 2000



- Islam Karimov put his candidacy from the Fidokorlar party.
- 95.7 percent (11,147,621) of voters supported the candidacy of Islam Karimov



- Abdulfafiz Jalolov, a representative of the People's Democratic Party of Uzbekistan, was the opponent.
- 4.3 percent (505161) of the electors voted for Abdulfafiz Jalolov

Referendum in 2002



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- In January 2002, with a referendum, the presidency was prolonged for a term of 7 years.
- Thus, the next election held in 2007.



Presidential Election in 2007

- In the election 2007, acting President Islam Karimov was nominated by the newly formed - the Liberal Democratic Party of Uzbekistan.
- Asliddin Rustamov, the representative of the People's Democratic Party of Uzbekistan;
- Dilorom Tashmuhamedova from the Social-Democratic Party "Adolat";
- And independent candidate Akmal Saidov was registered as presidential nominee.
- The turnout of voters was 90.6% (14,765,444). According to the results, Islam Karimov received over 13 million votes and collected 90.76 percent of the vote. His opponents Asliddin Rustamov, Dilorom Tashmuhammedova and Akmal Saidov received 3.27%, 3.03% and 2.94% respectively.



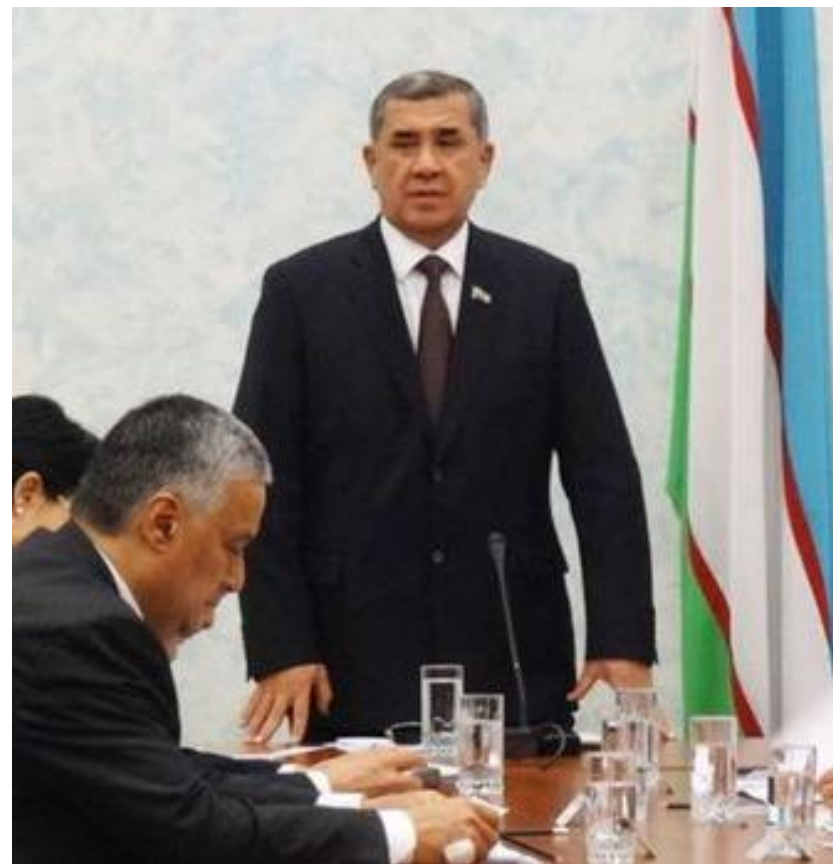
Presidential Election in 2015



- The second term of the presidency of Islam Karimov expired in December 2014.
- However, the election was held on March 29, 2015, in three months later because of the fact that the parliamentary elections was held at the same time.
- 18 million 942 thousand 349 voters that constituted 91.8 per cent of voters (from 20 million 798 thousand 52 voters included in the voter list) participated in the election.
- 17 million 122 thousand 597 or 90.39% of voters supported the candidate from the Liberal Democratic Party of Uzbekistan Islam Abduganievich Karimov.
- 582 thousand 688 people, or 3.08 percent for Akmal Kholmatovich Saidov from "National Revival" Democratic Party of Uzbekistan, 552 thousand 309 people, or 2.92 percent of the voters for Hotamjon Abdurahmonovich Ketmonov from the People's Democratic Party, "Adolat Social-Democratic" candidate Nariman Majitovich Umarov received 389 thousand 24 or 2.05 percent of the vote.

Events in 2016

- In September 2016, the first president of Uzbekistan, Islam Abduganievich Karimov, passed away
- In accordance with the law "On Elections of the President of the Republic of Uzbekistan" it was decided to hold presidential election on December 4 at the special session.
- After the death of Islam Karimov on September 2, 2016, in accordance with Article 96 of the Constitution Nigmatilla Tulkinovich Yuldashev, the chairman of Senate became acting president of Uzbekistan
- However, on September 8 at a joint meeting of both chambers of the parliament of Uzbekistan, he announced his self-challenge in favor of Shavkat Mirziyoyev
- Yuldashev explained the decision lack of sufficient experience in government administration.



The Fifth Election in 2016

- According to the Central Election Commission, 17.97 million, 87.73% of the voters (out of 20 million 461 thousand 805 voters) took part in the election that held on December 4.
- According to the results of the election of the President of the Republic of Uzbekistan, 15 million 906 thousand 724 voters or 88,61% of the total number of voters voted for Shavkat Mirziyoyev
- 669,187 voters or 3.73% of the total number of voters who participated in the election supported the candidacy of Khatamjon Abdurahmanovich Ketmonov
- 619 972 people or 3.46 percent of the total number of votes voted for Nariman Majitovich Umarov
- 421 thousand 55 voters or 2.35% of the total number of voters for Sarvar Sadullayevich Otamuratov



The Sixth Election in 2021

- Presidential election was held in Uzbekistan on October 24, 2021. According to the chairman of the Central Election Commission of Uzbekistan Zayniddin Nizomkhojaye, Incumbent President Shavkat Mirziyoyev won a second term with a majority of the vote.
- **Vote share:**
 - ❖ UzLiDeP candidate Shavkat Mirziyoyev - 80.1%
 - ❖ Maqsuda Vorisova from the People's Democratic Party of Uzbekistan - 6.6%
 - ❖ Alisher Kadyrov from the Democratic Party "Milliy Tiklanish" - 5.5%
 - ❖ Narzullo Oblomurodov from the Ecological Party of Uzbekistan - 4.1%
 - ❖ Bahrom Abduhalimov from the Social Democratic Party "Adolat" - 3.4%.



Election 2023

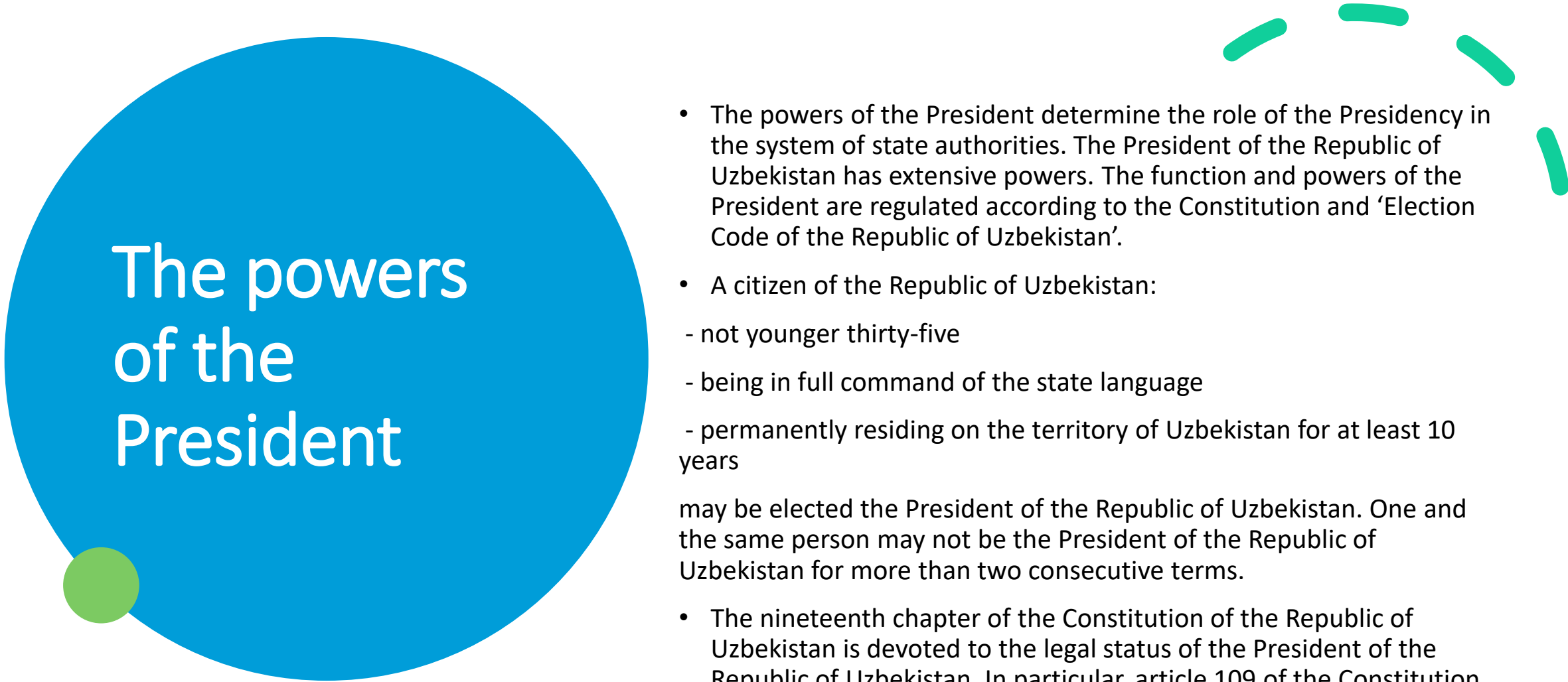


- The Central Election Commission announced the final results of the presidential election held in Uzbekistan on July 9, 2023.
- Shavkat Miromonovich Mirziyoyev was elected to the post of President of Uzbekistan with 87.05 percent of the votes of the voters who participated in the election.
- Robakhon Anvarovna Mahmudova, the candidate from the social-democratic party "Adolat" of Uzbekistan received 4.43% of votes, whereas 4.02% voters for Ulugbek Ilyasovich Inoyatov, the candidate from the People's Democratic Party of Uzbekistan, and 3.74% for Abdushukur Khudoykulovich Hamzaev, the candidate from the Ecological Party of Uzbekistan. More than 15.6 million or almost 80 percent of citizens who were included in the voter's list participated in the presidential election.

The Biography of Shavkat Mirziyoev



- Shavkat Mirziyoyev was born on July 24, 1957, in Zamin district of Jizzakh region
- In 1981 he graduated from the Tashkent Institute of Engineers of Irrigation and Mechanization of Agriculture and received a degree in mechanical engineer. Holds a title of Academic Candidate (PhD) in Technical Sciences, and Associate Professor.
- Shavkat Mirziyoyev started his career in 1981 at the Tashkent Institute of Engineers of Irrigation and Mechanization of Agriculture, where he worked as a junior research fellow, senior lecturer, associate professor, and eventually Vice Rector for academic affairs.
- In 1990, he was elected deputy of the Supreme Council of the republic, and at the same time served as Chairman of the Credentials Committee.
- In 1992, Shavkat Mirziyoyev was appointed hokim (governor) of Mirzo Ulugbek district of Tashkent city.
- In 1996-2001, he worked as hokim of Jizzakh region, in 2001-2003 hokim of Samarkand region, and made a great contribution to the socio-economic development of the above-mentioned districts and regions.
- Shavkat Mirziyoyev was approved as the Prime Minister of the Republic of Uzbekistan in 2003, and three times (in 2005, 2010, 2015) was reapproved in his post by both houses of the Oliy Majlis



The powers of the President

- The powers of the President determine the role of the Presidency in the system of state authorities. The President of the Republic of Uzbekistan has extensive powers. The function and powers of the President are regulated according to the Constitution and 'Election Code of the Republic of Uzbekistan'.
- A citizen of the Republic of Uzbekistan:
 - not younger thirty-five
 - being in full command of the state language
 - permanently residing on the territory of Uzbekistan for at least 10 yearsmay be elected the President of the Republic of Uzbekistan. One and the same person may not be the President of the Republic of Uzbekistan for more than two consecutive terms.
- The nineteenth chapter of the Constitution of the Republic of Uzbekistan is devoted to the legal status of the President of the Republic of Uzbekistan. In particular, article 109 of the Constitution reflects the powers of the President of the Republic of Uzbekistan. The powers of the President of the Republic of Uzbekistan can be divided into several groups according to their aim and content.

Powers in the field of legislation and jurisprudence

- suspend, cancel acts of republican executive bodies and khokims; have the right to chair the meetings of the Cabinet of Ministers of the Republic of Uzbekistan;
- sign and promulgate laws of the Republic of Uzbekistan; shall have the right to return a law, with his objections, to the Oliy Majlis of the Republic of Uzbekistan for the second discussion and vote;
- put to the Senate of the Oliy Majlis of the Republic of Uzbekistan submission on adoption of acts of amnesty and effectuate pardoning of persons condemned by courts of the Republic of Uzbekistan;
- the President of the Republic of Uzbekistan shall issue decrees, resolutions and ordinances binding on the entire territory of the Republic on the basis of and for enforcement of the Constitution and laws of the Republic of Uzbekistan (Article 110)



Powers on formation of state bodies



- ensures confirmed functioning and interaction of the state authorities; form and abolish ministries and other republican bodies of executive authority with subsequent submission of decrees on these matters for approval by the Senate of the Oliy Majlis of the Republic of Uzbekistan;
- appoint and relieve, upon the submission of the Prime Minister of the Republic of Uzbekistan, khokims of districts and cities of their posts in accordance with law. The President of the Republic of Uzbekistan shall have the right to relieve, by his decision, khokims of districts and cities of their posts, should they violate the Constitution, laws or perform acts discrediting the honour and dignity of a khokim;
- represent to the Senate of the Oliy Majlis of the Republic of Uzbekistan a nominee for the election on the post of the Chairperson of the Senate;
- appoint, with the approval of the Legislative Chamber of the Oliy Majlis, the Prime Minister of the Republic of Uzbekistan and the members of the Cabinet of Ministers of the Republic of Uzbekistan and dismisses them from their posts;
- appoint and dismiss heads of committees, agencies and other republican state bodies in accordance with the legislation;
- appoint and dismiss the Prosecutor General of the Republic of Uzbekistan and the Chairperson of the Chamber of Accounts of the Republic of Uzbekistan with the approval of the Senate of the Oliy Majlis of the Republic of Uzbekistan;

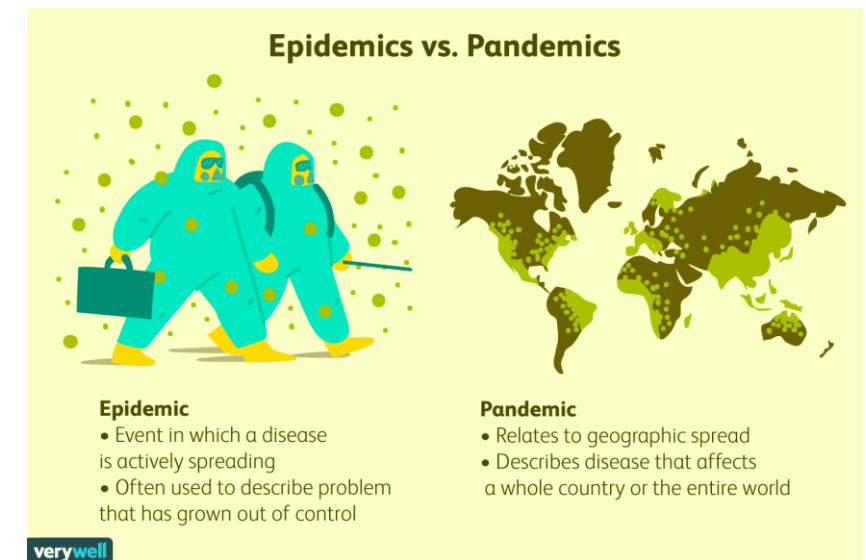
Powers on formation of state bodies

- appoint, after consultation with the Senate of the Oliy Majlis of the Republic of Uzbekistan, the Chairperson of the State Security Service of the Republic of Uzbekistan, and dismisses him from his post;
- present candidates to the Senate of the Oliy Majlis of the Republic of Uzbekistan for the Constitutional Court of the Republic of Uzbekistan, the Supreme Court of the Republic of Uzbekistan, the Supreme Judicial Council of the Republic of Uzbekistan, as well as for the posts of Chairperson of the Board of the Central Bank of the Republic of Uzbekistan, head of the republican body to counteract corruption and head of the republican anti-monopoly body;
- appoint and dismiss, upon the submission of the Supreme Judicial Council of the Republic of Uzbekistan, Chairpersons and deputy Chairpersons of courts in regions and the city of Tashkent, the Chairperson of the Military Court of the Republic of Uzbekistan; approve members of the Supreme Judicial Council of the Republic of Uzbekistan;
- announce condition of war in case of attack on the Republic of Uzbekistan or in case of necessity of the implementation of contractual obligations on mutual defense from aggression, general or partial mobilization and within seventy two hours submit the adopted decision for approval by the chambers of the Oliy Majlis of the Republic of Uzbekistan;
- serve as the Supreme Commander-in-Chief of the Armed Forces of the Republic of Uzbekistan, appoint and relieve the supreme command of the Armed Forces of the post and confer the highest military ranks;
- form and head the Security Council at the President of the Republic of Uzbekistan, forms the Presidential Administration, as well as consultative, advisory and other bodies at the President of the Republic of Uzbekistan in order to ensure the implementation of its competence.



Powers in the area of securing the rights, freedoms, duties and legitimate interests of citizens

- guarantee observance of rights and freedoms of citizens, the Constitution and laws of the Republic of Uzbekistan;
- in exceptional cases (real outside threat, mass disturbances, major catastrophes, natural calamities, epidemics) in the interests of ensuring citizens' security introduce the state of emergency on the entire territory or in the particular localities of the Republic of Uzbekistan and within seventy-two hours submit the adopted decision for approval by the chambers of the Oliy Majlis of the Republic of Uzbekistan. Conditions and the procedure for introducing the state of emergency shall be set by law;
- award orders, medals and certificates of honour of the Republic of Uzbekistan, confer qualification and honorary titles of the Republic of Uzbekistan;
- rule on matters of citizenship of the Republic of Uzbekistan and granting political asylum.



Thank you for your attention!